BEFORE THE WASHINGTON STATE LIQUOR AND CANNABIS BOARD

IN THE MATTER OF: THE HISTORIC MINT RESTAURANT & ALEHOUSE, INC d/b/a THE MINT PO BOX 456 ENUMCLAW, WA 98022-0456 LICENSEE LICENSE NO. 355963 AVN NO. 1L1310A UBI NO. 603 304 814 001 0001	LCB NO. L-27,634 OAH NO. 01-2022-LCB-01014 FINAL ORDER OF THE BOARD

The above-captioned matter coming on regularly before the Board, and it appearing that:

1. The Liquor and Cannabis Board issued a complaint dated January 3, 2022, alleging that on or about November 6, 2021, the above-named Licensee or an employee thereof engaged or allowed behavior that provokes conduct that presents a threat to public safety in violation of WAC 314-11-015(3) by failing to adopt or enforce minimal safety precautions to prevent the spread of the COVID-19 virus, and by failing to wear facemasks as required by the Governor's Proclamations 20-05 & 20-25, *et seq*., and associated orders of the Secretary of Health. As a first Group 1 public safety violation in a two-year window, the Licensee is subject to a five-day license suspension or a $500 monetary penalty in lieu of suspension under WAC 314-29-020.
2. The Licensee made a timely request for a hearing.
3. A Prehearing Conference was scheduled for Monday, January 24, 2022, at 9:00 a.m. before Administrative Law Judge TJ Martin with the Office of the Administrative Hearings.

Washington State Liquor and Cannabis Board
1025 Union Ave, S.E.
P.O. Box 43076
Olympia, WA 98504-3076
Phone: 360-664-1709

4. Owners Scott and Olivia Magargle appeared and represented the Licensee. Assistant Attorney General Jong Lee appeared and represented the Enforcement Division of the Liquor and Cannabis Board.
5. On June 13, 2022, Appellant's Motion for Summary Judgment was filed and Enforcement's Motion for Summary Judgment was filed.
6. On July 5, 2022, Enforcement's Response to Licensee's Motion for Summary Judgment was filed and Appellant's Reply to the Liquor Cannabis Board's Motion for Summary Judgment was filed.
7. On July 18, 2022, Appellant's Reply to the Liquor Cannabis Board's Response to Appellant's Motion for Summary Judgment was filed and Enforcement's Reply in Support of Its Motion for Summary Judgment was filed.
8. On August 10, 2022, Administrative Law Judge TJ Martin issued an Initial Order Granting LCB 'Enforcement's Motion for Summary Judgment' and 'Denying Appellant's Motion for Summary Judgment' in this matter, which sustained the Complaint.
9. No Petition for Review was received.
10. The entire record in this proceeding was presented to the Board for final decision, and the Board having fully considered said record and being fully advised in the premises;

NOW, THEREFORE, IT IS HEREBY ORDERED that the Administrative Law Judge's Facts for Purpose of Summary Judgment, Conclusions of Law and Initial Order are AFFIRMED and adopted as the Findings of Fact, Conclusions of Law and Final Order of the Board.

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IT IS HEREBY FURTHER ORDERED that the complaint filed in case L-27,634 is sustained. According to WSLCB's records, payment of $500 was remitted by the Licensee and processed on August 31, 2022.

DATED at Olympia, Washington this 6th day of September, 2022.

WASHINGTON STATE LIQUOR AND CANNABIS BOARD

Reconsideration. Pursuant to RCW 34.05.470, you have ten (10) days from the service of this Order to file a petition for reconsideration stating the specific grounds on which relief is requested. A petition for reconsideration, together with any argument in support thereof, should be filed by either;

1) Electronic Transmission. Email the petition for reconsideration to: lcbadjudicationfax@lcb.wa.gov

2) Mailing or delivering it directly to the Washington State Liquor and Cannabis Board, Attn: Adjudication Proceedings Coordinator, 1025 Union Avenue Southeast, PO Box 43076, Olympia, WA 98504-3076.

A copy shall be sent to all other parties of record and their representatives. Filing means actual receipt of the document at the Board's office. RCW 34.05.010(6). A copy shall also be sent to Jeremy Gelms, Assistant Attorney General, 800 Fifth Avenue, Suite 2000, Seattle WA 98104-3188. Within seven (7) days after service of the petition for reconsideration, any of the other parties may file a response

to that petition, or request an extension, with the Liquor and Cannabis Board. Copies of the response must be sent to all other parties and their representatives at the time the response is filed.

A timely petition for reconsideration is deemed to be denied if, within twenty (20) days from the date the petition is filed, the agency does not (a) dispose of the petition or (b) serve the parties with a written notice specifying the date by which it will act on the petition. An order denying reconsideration is not subject to judicial review. RCW 34.05.470(5). The filing of a petition for reconsideration is not a prerequisite for filing a petition for judicial review.

Stay of Effectiveness. The filing of a petition for reconsideration does not stay the effectiveness of this Order. The Board has determined not to consider a petition to stay the effectiveness of this Order. Any such request should be made in connection with a petition for judicial review under chapter 34.05 RCW and RCW 34.05.550.

Judicial Review. Proceedings for judicial review may be instituted by filing a petition in superior court according to the procedures specified in chapter 34.05 RCW, Part V, Judicial Review and Civil Enforcement. The petition for judicial review of this Order shall be filed with the appropriate court and served on the Board, the Office of the Attorney General, and all parties within thirty days after service of the final order, as provided in RCW 34.05.542, or order on petition for reconsideration, as provided in RCW 34.05.470. If the Appellant withdraws its request for an administrative hearing, then the matter is not subject to judicial review.

Service. This Order was served on you at the date and time indicated on the electronic transmission from the Board. If electronic transmission is not applicable, this Order was served on you the day it was deposited in the United States mail. RCW 34.05.010(19).

Washington State
Liquor and Cannabis Board

September 6, 2022

Daniel J. Neilsen
Attorney for Licensee
Law Offices of Daniel J. Neilsen, PLLC
23745 225th Way SE, Ste 205
Maple Valley, WA 98038

Jason Miller, AAG
GCE Division, Office of Attorney General
Jason.miller@atg.wa.gov

RE: FINAL ORDER OF THE BOARD
Licensee: The Historic Mint Restaurant & Alehouse, Inc.
Trade Name: The Mint
License No. 355963
LCB Hearing No. L-27,634
AVN No. 1L1310A
OAH No. 01-2022-LCB-01014
UBI No. 603 304 814 001 0001

Dear Parties:

Please find the enclosed Final Order of the Board and Declaration of Service by Mail in the above-referenced matter. If you have any questions, please contact me at 360-664-1709.

Sincerely,

Tinaya Smith

Tinaya Smith
Adjudicative Proceedings Coordinator

Enclosures (2)
CC:

Deputy Director Hood, WSLCB Director Office
Director Brady, WSLCB Enforcement
Deputy Chief Rupke, WSLCB Enforcement
Captain Dzubay, WSLCB Enforcement
Lieutenant Chue, WSLCB Enforcement
Officer Pleasance, WSLCB Enforcement
Patrick McMillen, WSLCB Enforcement
Belinda Verona, WSLCB Enforcement
Emilee Ragsac, WSLCB Enforcement
Andrea Lee, WSLCB Enforcement

WASHINGTON STATE LIQUOR AND CANNABIS BOARD

IN THE MATTER OF: THE HISTORIC MINT RESTAURANT & ALEHOUSE, INC d/b/a THE MINT PO BOX 456 ENUMCLAW, WA 98022-0456 LICENSEE LICENSE NO. 355963 AVN NO. 1L1310A UBI NO. 603 304 814 001 0001	LCB NO. L-27,634 OAH NO. 01-2022-LCB-01014 DECLARATION OF SERVICE BY MAIL

I certify that I caused a copy of the FINAL ORDER OF THE BOARD in the above-referenced matter to be served on all parties or their counsel of record by US Mail Postage Prepaid via Consolidated Mail Service for Applicants and Licensees and by electronic mail for WSLCB offices and state offices on the date BELOW TO:

DANIEL J. NEILSEN ATTORNEY FOR LICENSEE LAW OFFICE OF DANIEL J NEILSEN, PLLC 23745 225TH WAY SE, STE 205 MAPLE VALLEY, WA 98038	OFFICE OF THE ATTORNEY GENERAL JASON MILLER ASSISTANT ATTORNEY GENERAL JASON.MILLER@ATG.WA.GOV
THE HISTORIC MINT RESTAURANT & ALEHOUSE, INC d/b/a THE MINT PO BOX 456 ENUMCLAW, WA 98022-0456	THE HISTORIC MINT RESTAURANT & ALEHOUSE, INC d/b/a THE MINT 1608 COLE ST ENUMCLAW, WA98022

DATED this 6th day of September, 2022, at Olympia, Washington.

Tinaya Smith

Tinaya Smith, Adjudicative Proceedings Coordinator